Ian Levitt Attorneys

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Your Ref : KRE/MM/KF0019
Our Ref : MAT4719
Date : 1 October 2025

TO: **ELLIOT ATTORNEYS INC**

ATTENTION: **KEEGAN ELLIOT**

PER EMAIL: **keegan@elliottattorneys.co.za**

Dear Sirs,

URGENT – WITH PREJUDICE

RE: PETER ANDREW FAUCITT / JACQUELINE FAUCITT & OTHERS
CASE NO: 2025-137857

1. The above matter refers as does your correspondence dated 30 September 2025 and the response received from Jacqueline Faucitt ("Jacqui") in response thereto.

2. At the outset, we record the fact that we have been approached by Jacqui and Daniel James Faucitt ("our clients") to consider the potential anticipation and setting aside of the urgent *ex parte* order that was granted against them on 19 August 2025.

3. In this regard, the order obtained against our clients interdicts and restrains them, pending the determination of the relief sought under Part B of the notice of motion, from, *inter alia*, dealing with the business (and the administration thereof) of the Third to Sixth Respondents,

their employees, partners, and clientele, "***in any manner in which any may sustain any prejudice***".

4. Regima is a medically recognised and highly specialised range of skin treatments, developed more than 33 years ago by Jacqui, who remains the Chief Executive Officer and Head of Regima. She is, and remains, the lead trainer at Regima.

5. The Regima product range is widely used by plastic surgeons and other medical practitioners and has achieved international recognition for its effectiveness and safety. The use of the products however requires proper training and only those persons who are certified as competent may apply the Regima products due to the potential for serious bodily harm to be suffered as a result of the improper use and application of the products.

6. To this end, we have been instructed by our clients that prior to the obtaining of the interdict, a training course was scheduled for 7 to 8 October 2025 for therapists to be trained in using the Regima product range.

7. Given that our client, Jacqui, is the original designer of the treatments, the lead trainer, and the only individual with comprehensive knowledge of the products' methodology and application, her involvement in training is essential.

8. Furthermore, the training process is stringent. Therapists are required to pass both a written examination and a practical assessment. This is due to the potential for physical harm in the event of the improper use of the products.

9. The presence of our client at the upcoming training course is essential and will ensures that the attendees are properly instructed, trained, and supervised, and that they acquire the necessary confidence and skill to administer these treatments safely.

10. Notwithstanding the above, you and your client have taken the view that should our client attend to train these therapists, she will be in contempt of the order. This interpretation of the order is manifestly wrong.

11. None of the paragraphs in the order prevent our client from attending to train the therapists and we are at a loss to understand how her conduct could result in the businesses, their employees, partners and clientele sustaining any form of prejudice.

12. To the extent that you disagree, you are specifically required to set out the prejudice which you contend may be suffered should our client attend to train the therapists during the course.

13. There cannot however be any conceivable prejudice and, in our view, our client's intended conduct does not constitute a breach of the order. The order cannot be interpreted to wholly exclude our clients from the business of the various Regima entities.

14. We accordingly afford you a period of until close of business on **Thursday, 2 October 2025** to substantiate your client's position which, for the reasons already advanced, is improper.

15. Apart from the above, we request that you urgently invite the following profiles to Court Online and CaseLines so that we can advise our clients:

    15.1. Ian Levitt – ian@ianlevitt.co.za (Court Online and CaseLines); and

    15.2. Natan Back – natan@ianlevitt.co.za (CaseLines).

16. We await your urgent response and reserve all of our clients' rights.

Yours faithfully,

IAN LEVITT ATTORNEYS

PER: IAN LEVITT & NATAN BACK

SENT ELECTRONICALLY AND THEREFORE UNSIGNED